

PR-25-000262 Estate of LOCKARD, DENNIS J – Petitioner Kelsey Wood's Motion to Strike Slapp Suit by Respondents and for Attorney Fees – DENIED.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: Respondents move to strike the Second Cause of Action for Double Damages under Probate Code § 859, the Fifth Cause of Action for Financial Elder Abuse, and portions of the prayer for relief. An anti-SLAPP motion is evaluated under a two-step process. First, the moving party must establish that the challenged claims arise from protected activity—i.e., acts in furtherance of the constitutional right of petition or free speech, including statements or writings made in judicial proceedings or in connection with issues under review by a court. If that burden is met, the analysis proceeds to step two, where the burden shifts to the plaintiff or petitioner to demonstrate a probability of prevailing on the merits by presenting legally sufficient claims supported by admissible evidence. (See *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.) Courts construe protected activity broadly at step one. (See *Brodeur v. Atlas Entertainment, Inc.* (2016) 248 Cal.App.4th 665, 674 [“It is ... beyond dispute that the anti-SLAPP statute, including the scope of the term “public interest,” is to be construed broadly.”].) But in determining the first prong, courts focus on the acts supplying the elements of liability, not merely evidence that may support liability. (See *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1063 [“[I]n ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.”]; see also *Gaynor v. Bulen* (2018) 19 Cal.App.5th 864, 869 [“To trigger anti-SLAPP protection, the moving party has the initial burden to show the plaintiff alleges constitutionally-protected activity and the claim arises from this activity.”] [emphasis in original].) Respondents have failed to satisfy the first prong of the anti-SLAPP analysis. The challenged causes of action do not arise primarily from Respondents' protected legal activity. Although the Petition references rejection of a creditor's claim and denial of liability, the purported liability-producing conduct consists largely of the alleged taking, retention, concealment, disposal, and control of estate property. The gravamen of the challenged claims comprises noncommunicative conduct involving estate assets, not protected legal activity. Because Respondents fail to satisfy the first prong, the Court need not reach the second prong. Nonetheless, the Court notes that Petitioner has submitted sufficient allegations and evidentiary material to demonstrate at least minimal merit for purposes of an anti-SLAPP analysis. For the foregoing reasons, the request to strike the Second Cause of Action, Fifth Cause of Action, and related prayer allegations is DENIED. Respondents' request for attorney fees is correspondingly DENIED. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 4dbc9d5981abdf62b372c8658e98b01335c72737d1316d0f784cf4c1c346e2a5

PR-25-000262 – Estate of LOCKARD, DENNIS J – Petitioner Kelsey Wood's Motion to Strike Slapp Suit by Respondents and for Attorney Fees – DENIED.

Respondents move to strike the Second Cause of Action for Double Damages under Probate Code § 859, the Fifth Cause of Action for Financial Elder Abuse, and portions of the prayer for relief.

An anti-SLAPP motion is evaluated under a two-step process. First, the moving party must establish that the challenged claims arise from protected activity—i.e., acts in furtherance of the constitutional right of petition or free speech, including statements or writings made in judicial proceedings or in connection with issues under review by a court. If that burden is met, the analysis proceeds to step two, where the burden shifts to the plaintiff or petitioner to demonstrate a probability of prevailing on the merits by presenting legally sufficient claims supported by admissible evidence. (See *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

Courts construe protected activity broadly at step one. (See *Brodeur v. Atlas Entertainment, Inc.* (2016) 248 Cal.App.4th 665, 674 [“It is ... beyond dispute that the anti-SLAPP statute, including the scope of the term “public interest,” is to be construed

broadly.”].)

But in determining the first prong, courts focus on the acts supplying the elements of liability, not merely evidence that may support liability. (See *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1063 [“[I]n ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.”]; see also *Gaynor v. Bulen* (2018) 19 Cal.App.5th 864, 869 [“To trigger anti-SLAPP protection, the moving party has the initial burden to show the plaintiff alleges constitutionally-protected activity and the claim arises from this activity.”] [emphasis in original].)

Respondents have failed to satisfy the first prong of the anti-SLAPP analysis. The challenged causes of action do not arise primarily from Respondents' protected legal activity. Although the Petition references rejection of a creditor's claim and denial of liability, the purported liability-producing conduct consists largely of the alleged taking, retention, concealment, disposal, and control of estate property. The gravamen of the challenged claims comprises noncommunicative conduct involving estate assets, not protected legal activity.

Because Respondents fail to satisfy the first prong, the Court need not reach the second prong. Nonetheless, the Court notes that Petitioner has submitted sufficient allegations and evidentiary material to demonstrate at least minimal merit for purposes of an anti-SLAPP analysis.

For the foregoing reasons, the request to strike the Second Cause of Action, Fifth Cause of Action, and related prayer allegations is DENIED.

Respondents' request for attorney fees is correspondingly DENIED.

The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23: